**RAINAS GAMBAZA**

**versus**

**PROVINCIAL MINING DIRECTOR MATABELELAND SOUTH**

HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 6 JUNE AND 7 JULY 2026

**Urgent Chamber Application**

*J. Sibanda with Ms Masawi*, for the applicant
*M. M. Takaendesa*, for the respondent

**MOYO J:** This is an urgent application wherein applicant seeks an order compelling the respondent to grant a carbon movement permit to the applicant.

The background to the matter is that, applicant had an incomplete donation of a mining claim from one Michael John Van Rooyen some years back. The mining claim was supposedly handed over to him and he is in its possession. However, the name of the mining claim did not change. In other words the donation was not completed. The donor Michael John Van Rooyen then passed on 16 February 2022 approximately 4 years back without formalising and completing the donation.

The widow of the late Van Rooyen confirmed the incomplete donation via an affidavit. Applicant says he has had peaceful and undisturbed possession of the mining claim since the time it was "donated." That a 3rd party tried to stop applicant's mining activities through the courts but he failed.

In March 2026, applicant instructed his mine Manager to apply for a carbon movement permit for the mine. Respondent replied by requesting for certain documents i.e a Title Holding, Inspection Certificate and manager appointment approval prior to issuing the permit. The documents were supplied but respondent refused or neglected to issue the carbon permit. It is common cause that the mining claim is still in the deceased's names. Respondent declined

to issue the carbon movement permit in the names of the mine registered under the deceased and advised they would deal directly with an executor of the deceased estate.

Respondent has raised a preliminary point on urgency and the thrust of respondent's argument is that the matter is not urgent as applicant had the mining claim donated to him without the donation, which must be completed through the appropriate paperwork being complete. That even after deceased died in 2022, 4 years ago applicant should have approached the Executor of the estate to make good the donation and legalise his claim to the mining claim. That applicant sat on a timebomb for years, mining without title and getting papers that he should not have been getting, and then he springs up when the respondent applies the law due to a state of affairs born by applicant's own inaction, he then runs to court crying urgency.

Respondent argues that there is no urgency where there is no *prima facie* right because it is not there until applicant regularises his status on the mine by ensuring that it passes from the deceased to him.

The sum total of respondent's argument is that applicant sat back and did nothing for years when he knew that he had no ownership of the mine and yet permits require the owner or someone with a lawful right to apply for them.

The law on urgency is settled. In *Kuvarega* v *Registrar General and Anor* 1998 (1) ZLR 188 (H) the court held that urgency arising from a deliberate or careless abstention for taking action and leaving an undesirable state of affairs until the 11$^{th}$ hour, is not the urgency contemplated by the rules. A litigant seeking preferential treatment on the urgent roll, seeking to jump the queue, must demonstrate that they treated the matter as urgent when the need to act first arose.

In the present case, the need to regularise the mining operations did not arise upon the refusal of the permit. It arose years earlier when applicant commenced mining operations without the requisite lawful entitlement papers. The applicant was aware, or ought to have reasonably been aware, of its untenable position and the obligation to regularise the donation so as to regularise their operations. Despite that knowledge applicant is guilty of inaction for 4 years. The prejudice being complained of now is a direct consequence of applicant's negligence and failure to act so as to comply with the law.

Applicant cannot ignore an obviously untenable state of affairs for years, and then approach this court on the guise of urgency when the predictable consequences of his non-compliance materialise.

I am therefore satisfied that there is no urgency here, it is all self-created through inaction. Applicant does not qualify to jump the queue and be given preferential treatment so as to be heard before others who are in the queue.

I accordingly uphold the point *in limine* and consequently the application is struck off the roll of urgent matters with costs.

*Job Sibanda and Associates*, applicant's legal practitioners
*Civil Division of the Attorney General*, respondent's legal practitioners